Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsections 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (Closures) DIRECTION No. 1 2011

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate, make the following Direction under subsection 41A(2) of the *Fisheries Management Act 1991*.

Dated: 27 October 2011

James Findlay
Chief Executive Officer,
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 1 2011.

Period of Application

2. This Direction commences the day after it is registered on the Federal Register of Legislative Instruments, and ends at the end of 30 June 2012 unless earlier revoked.

To Whom This Applies

3. This Direction applies to a holder of a fishing concession in the Southern and Eastern Scalefish and Shark Fishery when using the gillnet method, in any of the Commonwealth Gillnet Sector, the South Australian Coastal Waters Sector or the Tasmanian Coastal Waters Sector.

Definitions

4. A term used in this Direction that is defined in the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* (the Management Plan) has the same meaning in this Direction as it has in the Management Plan.

Direction not to engage in fishing

5. Fishing is not to be engaged in for the species School Shark (*Galeorhinus galeus*) in the period 29 October 2011 to 30 April 2012.

Exception to the prohibition in Clause 5

6. The prohibition in clause 5 does not apply where:

(a) the holder holds five times more Gummy Shark (*Mustelus antarcticus*) quota (caught and uncaught) than the amount of School Shark that the holder has taken in the 2011-2012 fishing year (1 May 2011 to 30 April 2012);

OR

(b) at the end of the first period, the holder has taken less than 500 kilograms of School Shark (trunked weight) in that period;

(c) at the end of the second period, the holder has taken less than 750 kilograms of School Shark (trunked weight) in that period;

(d) at the end of the third period, the holder has taken less than 1 tonne of School Shark (trunked weight) in that period.

7. In clause 6:

(a) 'the first period' means the period from 1 May 2011 to 28 October 2011;

(b) 'the second period' means the period from 1 May 2011 to 27 January 2012; and

(c) 'the third period' means the period from 1 May 2011 to 30 April 2012.

8. For the purpose of determining compliance with clause 6, the holding of caught and uncaught quota of Gummy Shark and of School Shark taken must be calculated on each quota and catch balancing date, being:

(a) 5pm Eastern Standard Time 11 November 2011, for the first period;

(b) 5pm Eastern Standard Time 10 February 2012, for the second period; and

(c) 5pm Eastern Standard Time 13 May 2012 for the third period.

[**Note 1:** These dates and periods are those specified in the conditions of each concession for the Fishery.]

[**Note 2**: For example, if, at the end of the first period the person has taken 600 kilograms of School Shark, the holder must hold at least 3 tonnes of Gummy Shark quota (600 kilograms x 5) on the 'quota and catch balancing date'.